b. **Appellate Jurisdiction:** It can hear appeals against the decisions made by the High Court on the granting of certificate by the High Court.

c. **Advisory Jurisdiction:** The Court can report to the President its opinion about a question of the public importance referred to it by the President.

d. **Writs Jurisdiction:** The Writs are issued by the Supreme Court under Article 32 and by the High Courts under Article 226 of the Constitution of India.

e. **Court of Record:** It maintains records of the court proceedings and its decisions are finding upon the lower courts.

f. **Special Powers:** It supervises the functioning of the lower courts.

## High Court



**High Court of Madras**

This is the highest court in the states. Every state in India has a High Court. Two or three states may have a common High Court. For example Punjab, Haryana and Chandigarh is having one High Court. It has original, Appellate and Writs Jurisdiction. Below the High Court there are a Subordinate courts in the States.

## Independent and impartial function of Judiciary

The framers of the Constitution established independent and impartial judiciary in India. Independence of judiciary is important for the purpose of fair justice. Democratic country like India, judiciary is the custodian of rights of citizens. Therefore, the framers of the Indian Constitution at the time of framing of our constitution were concerned about the kind of judiciary our country should have. This concern of the members of the constituent assembly was responded by Dr. *B.R. Ambedkar* in the following words:

*"There can be no difference of opinion in the House that our judiciary must be both independent of the executive and must also be competent in it. And the question is how these two objects can be secured."*

An effective judiciary should be independent as well as accountable. The independence of the judiciary is the independence of the exercise of the functions by the judges in an unbiased manner i.e. free from any external influence.

## The Litigation Process

There are two different types of legal sections in India: Civil and Criminal

| Civil Law | Criminal Law |
|---|---|
| • It deals with disputes over money property and social matters.<br>Eg. Disputes relating to land, rent, marriage dispute etc.,<br>• A petition has to be filed before the relevant court by the affected parties.<br>• Sentences awarded in the form of money remuneration and as per the petitioner's claim. | • It deals with conducts or acts that the law defines as offences.<br>Eg. Theft, murder, women harassment etc.,<br>• It usually begins with lodging of an FIR (First Information Report) with police investigation after which a case is filed in the court.<br>• Punishment is awarded if proven guilty, the accused is sent to jail. |



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